

24CMCV00513 24CMCV00513

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-19

Motion: MOTION FOR AN ORDER VACATING THE ORDER AWARDING ATTORNEY FEES PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 473(b) DATE: Augus 19, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV00513 Hearing Date: August 19, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

BUSINESS

PURPOSE FUNDING, INC.,

Plaintiff,

vs.

FLOR ANTONIO; GLORIA

ANGELICA URIZAR, IGNACIO SANCHEZ, DOES 1 TO 10; ET AL.,

Defendants.

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CASE

NO: 25CMUD01035

[TENTATIVE] ORDER RE: MOTION FOR AN ORDER

VACATING THE ORDER AWARDING ATTORNEY FEES PURSUANT TO CODE OF CIVIL PROCEDURE

SECTION 473(b)

DATE: August 19, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Business Purpose Funding

Responding Party: Defendant

Flor Antonio and Gloria Angelica Urizar

Notice: Ok

Tentative Ruling: Plaintiff's

Motion for an Order Vacating the Order Awarding Attorney Fees is DENIED.

I.

BACKGROUND

This is an unlawful detainer action. Plaintiff Business Purpose Funding, Inc. alleges that it owns the real property located at 153 East 102nd Street, Los Angeles, CA 90003 ("the Subject Property") and that on or about June 1, 2016 Defendants Flor Antonio ("Antonio"), Gloria Angelica Urizar ("Urizar") and Ignacio Sanchez ("Sanchez")^[1] entered into a written monthly lease agreement to rent the Subject Property for \$1,200 per month. Plaintiff alleges Defendants failed to pay the monthly rental amount due, were served a 3-day Notice to Pay Rent or Quit, and failed to pay the amounts due in the specified time period.

On August 7, 2025, Plaintiff Business Purpose Funding Inc ("Plaintiff") filed its unlawful detainer complaint against Antonio, Urizar, Sanchez and Does 1 to 10 seeking possession of the Subject Property, past due rent, attorney fees, forfeiture of the agreement, and holdover damages.

On September 23, 2025, Antonio and Urizar filed an Answer. Among various affirmative defenses asserted, Antonio and Urizar asserted that "Plaintiff failed to comply with CCP § 1962" (the "Tenth Affirmative Defense") and that "[t]he lease and/or rental agreement on which this action is based is illegal and/or unenforceable as contrary to public policy" (the "Sixteenth Affirmative Defense"). (See Answer – Unlawful Detainer, filed 9/23/25, pp. 4-5.)

Trial was held on February 11, 2026. At the conclusion of trial, the Court ordered judgment entered in favor of Antonio and Urizar, holding that they had prevailed on their Sixteenth Affirmative Defense. (See Minute Order, 2/11/26, p. 2.) On the same date, the Clerk of the Court entered judgment in favor of Antonio and Urizar and against Plaintiff. (See Judgment, 2/11/26.)

On July 20, 2026, the Court heard and granted Defendants' Motion for Attorney Fees in the total amount of \$26,000.00. (See Minute Order, 7/20/26.)

On August 5, 2026, the Court heard and granted

Plaintiff's Ex Parte Application for an Order Advancing Motion to Set Aside Order Awarding Attorney Fees. (See Minute Order, 8/5/26.)[2] The Court advanced Plaintiff's Motion to Set Aside to be heard on August 19, 2026 and set a briefing schedule. (See Id.)

Plaintiff's Motion to Vacate was filed on August 4, 2026.

Pursuant to the Court's August 5, 2026 briefing schedule, Defendants' Opposition was filed on August 11, 2026.

As of

August 17, 2026, no Reply has been filed.

Pursuant to the Court's August 5, 2026 briefing schedule, Plaintiff's Reply was to be filed and served no later than August 14, 2026 at 5:00 p.m.

(See Minute Order, 8/5/26.) Any Reply

now filed and/or served is untimely,

and the Court exercises its discretion to refuse to consider untimely filed papers.

(Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal

Standard

Code of Civil Procedure § 473(b)

"provides for both discretionary and mandatory relief. [Citation.]" (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) An application for relief under this section must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought, and must be accompanied by an affidavit of fault attesting the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code Civ. Proc. § 473(b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.)

In addition, an application for relief under this section

"shall be accompanied by a copy of the answer or other pleading proposed to be filed herein, otherwise the application shall not be granted." (Code Civ. Proc.

§ 473(b).) Relief under this section is mandatory when based on an attorney affidavit of fault; otherwise, it is discretionary. (Ibid.)

B.

Discussion

Pursuant to Code of Civil Procedure

§ 473(b), Plaintiff moves the Court to set aside its July 20, 2026 Order awarding Defendants \$26,000.00 in attorney fees, arguing that “due to a major calendaring error, Plaintiff failed to appear at the continued motion hearing [for Defendants’ Motion for Attorney Fees]” and attaching a declaration of Attorney Rebecca Hufford-Cohen attesting to the same. (Mot., p. 3:5-6; see Hufford-Cohen Decl. ¶¶ 5-8.) Plaintiff argues that it was unable to address the conclusions reached by the Court in its tentative ruling on Defendants’ Motion for Attorney Fees and seeks to have the Order set aside to allow Plaintiff to argue the Defendants’ Motion for Attorney Fees. Plaintiff specifically notes that, although Code of Civil Procedure § 473(b) provides for both mandatory and discretionary relief, “[i]n the present case, Plaintiff’s motion for relief from the order entered on July 20, 2026 is based solely upon the mandatory provisions in section 473(b) [because] Plaintiff’s counsel, through a calendaring error, failed to appear at the hearing on the Motion.” (Id., p. 4:11-22.)

In opposition, Defendants contend

that mandatory relief pursuant to Code of Civil Procedure § 473(b) is inapplicable to the instant situation because such mandatory relief only applies to defaults, default judgments and dismissals. Defendants argue that, because situation presented here is not a default, default judgment or dismissal, but rather a ruling made upon a fully briefed motion, mandatory relief is not available – even if premised upon an attorney’s affidavit of fault.

Because Plaintiff explicitly limits

its application for relief to the mandatory provision of Code of Civil Procedure § 473(b), the Court limits its analysis to the mandatory relief provision.

“[A] trial court is obligated to set

aside a default, default judgment, or dismissal if the motion for mandatory relief (1) is filed within six months of the entry of judgment, (2) is in proper form, (3) is accompanied by the attorney affidavit of fault, and (4)

demonstrates that the default or dismissal was in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

(Martin Potts & Associates, Inc. v. Corsair, LLC (2016) 244

Cal. App. 4th 432, 443 (internal quotations omitted).) Where an

attorney provides a declaration described in Section 473(b), relief from

default is mandatory "unless the court finds that the default or dismissal

was not in fact caused by the attorney's mistake, inadvertence, surprise, or

neglect." (Code

Civ. Proc. § 473(b); see Johnson v. Pratt &

Whitney Canada, Inc. (1994) 28 Cal.App.4th 613, 622-623 (Trial court could deny a motion for mandatory relief if it

finds the attorney's declaration lacked credibility).)

However, as Defendants correctly

assert, mandatory relief pursuant to Section 473(b) is limited to setting aside

"any (1) resulting default entered by the clerk against his or her client,

and which will result in entry of a default judgment, or (2) resulting default

judgment or dismissal entered against his or her client." (Code Civ. Proc §

473(b).) The mandatory provision of

Section 473(b) is narrower than the discretionary provision "insofar as it

is only available for defaults, default judgments, and dismissals, while

discretionary relief is available for a broader array of orders." (Martin

Potts & Associates, Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432,

438; accord Prieto v. Loyola Marymount University (2005) 132 Cal.App.4th

290, 295 (In the context of a request for relief pursuant to Section 473(b)

from an order on a motion for summary judgment, holding that "[t]he mandatory

provision of section 473(b) only empowers a court to set aside a default

judgment or a dismissal") see also Henderson v. Pacific Gas & Electric

Co. (2010) 187 Cal.App.4th 215).)

In accordance with the above, the

Court finds that the mandatory relief provision of Section 473(b), the sole

provision upon which Plaintiff bases its motion, does not grant the Court

authority to set aside the July 20, 2026 Order.

III.

CONCLUSION

Plaintiff's Motion to Vacate is

DENIED.

[1] Antonio and Urizar are collectively referred to herein as the “Defendants.”

[2] The “Motion to Set Aside” and the instant “Motion to Vacate” are the same motion, hereinafter referred to as the “Motion to Vacate.”